Development application Lodgement Matrix and checklist

For use when lodging an application through the NSW Planning Portal

The Clarence Valley Council is committed to meeting its obligations under the Government Information (Public Access) Act 2009 (NSW) (GIPA Act) and associated regulation. Council will redact personal information from development application forms that are made publicly available.

You are advised that complete documents submitted with development applications may be made publicly available as part of the development assessment process and/or as open access documents under the GIPA Act. ***You are advised to exercise due diligence in not including unnecessary personal information including signatures.***

(a) The Lodgement Matrix and checklist identifies what documentation is required to be submitted to Council in conjunction with a Development Application (including any amended applications). A detailed explanation is provided below for document requirements.

(b) Applications will not be accepted unless all required documentation is submitted to Council.

(c) All submitted documents must display the correct title, author, date and revision/version (if applicable)

For Dwellings and Ancillary Development	Dwellings / Secondary dwellings (granny flats)	Alterations and additions to dwellings	Outbuildings (e.g., pergolas, sheds, etc)	Swimming Pools	Demolition / Pool Infill
BASIX Certificate	●	○		○	
Biodiversity Assessment	○	○	○		
Bushfire Report	○	○	○		
Cost Estimate Report	●	●	●	●	●
Cut/Fill and Retaining Walls	○	○	○	○	
Demolition Plan and Statement	○	○	○		●
Development Control Plan / LEP Variation	○	○	○	○	
Elevation Plan	●	●	●	●	●
Erosion and Sediment Control Plan	●	●	●	●	●
Flood Impact Assessment Statement	○	○	○	○	
Floor Plan	●	●	●		○
Heritage Assessment	○	○	○	○	○
Notification Plan	●	●	●	●	●
Owner's consent required where applicant is not the owner	○	○	○	○	○
Section Plan	●	●	●	●	●
Site Plan	●	●	●	●	●
Statement of Environmental Effects	●	●	●	●	●
Stormwater Plan	●	●	●		
Waste Management Plan	●	○	○	○	●
Onsite Wastewater application	○	○	○		

●	**This information is required**	○	**This information may be required (refer to attached explanatory document)**

Council may require the submission of additional documentation, i.e., complex applications due to site constraints. Council encourages consultation prior to lodging your application. This ensure that many issues may be resolved before an application is lodged and that each application contains all necessary information to enable prompt processing. It is recommended that discussions occur with a Council Duty Officer, prior to lodgement of the application on (02) 6643 0200.

All other development	Dual Occupancies / Multiple Dwellings	Subdivision	Signage	Commercial	Tourist Accommodation	Industrial	Change of Use (no building works)	Home Occupation/Industry	Mixed Commercial/ Residential Development	Residential Flat Buildings
Accessibility Detail	○			○	○	○	○		○	○
Acid Sulfate Soil Management Plan	○	○		○	○	○			○	○
Acoustic Report	○	○		○	○	○	○	○	○	○
Adaptable Housing Details	○								○	○
Basix Certificate	●	○			○		○		●	●
Biodiversity Assessment	○	○	○	○	○	○	○	○	○	○
Bushfire Report	○	○		○	○	○	○		○	○
Cost Estimate Report	●	●	●	●	●	●	●	●	●	●
Contamination report	○	○		○	○	○			○	○
Crime Prevention Report	○	○		○	●	○			●	○
Cut/Fill and Retaining Walls	○	○		○	○	○			○	○
Development Control Plan Variation/ LEP Variation	○	○	○	○	○	○	○	○	○	○
Demolition Plan and Statement	○	○	○	○	○	○	○	○	○	○
Elevation Plan	●		●	●	●	●	○	○	●	●
Fire Safety Measures		○		○	○	○	○		○	○
Flood Impact Assessment Report	○	○		○	○	○			○	○
Floor Plan	●			●	●	●	●	●	●	●
Heritage Assessment	○	○	○	○	○	○	○	○	○	○
Landscaping Plan	●	○			○	●				●
Liquid Trade waste				○	○				○	
Notification Plan	●	●	●	●	●	●	●	●	●	●
On-site Wastewater Management System Report	○	○		○	○	○			○	○
Owner's consent required where applicant is not the owner	○	○	○	○	○	○	○	○	○	○
Section Plan	●			●	●	●			●	●
Shadow Diagrams	○			○	○	○			○	○
SEPP65 Design Quality of Residential Apartment Development Documentation									○	○
Site Analysis	●	●		●	●	○			●	●
Signage Plan			●	○	○	○	○	○	○	
Site Plan	●	●	●	●	●	●	●	●	●	●
Statement of Environmental Effects	●	●	●	●	●	●	●	●	●	●
Statement for Erosion and Sediment Control	●	○	○	●	●	●	○	○	●	●
Stormwater Management	●	●		●	●	●			●	●
Subdivision Plan		●								

Traffic Report	○		○	○	○	○	○	○	○	○
Waste Management Plan	●	○	●	●	●	●	○		●	●

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SUBMISSION REQUIREMENT	REQUIRED INFORMATION
Accessibility detail	Required in accordance with the Disability (Access to Premises - Buildings) Standards 2010. Information is required to demonstrate compliance with the Standards. An Access Report prepared by a suitably qualified person (such as an Access consultant, Architect or building designer) may be required. A Disability Access Report describes how the development will comply with provisions of the Disability Discrimination Act 1992 and the Disability (Access to Premises – Buildings) Standards 2010.
Acid sulfate soil management plan	A report to determine the appropriate management of Acid Sulfate Soil and is to be prepared by a suitably qualified person.
Acoustic report	Required where: • Residential development is proposed adjacent to noise sources, including railway lines, arterial roads, and aerodromes. • Other type of development is proposed adjacent to residential properties, e.g., use of an existing commercial building as a restaurant with extended trading hours, located adjacent todwellings. • Depending on nature of proposal, such as where noise may be significantly increased e.g., childcare centre, mechanical car wash, industrial processing, development with heavy vehicles. The report is to be prepared by a suitably qualified person accredited under the Association of Australasian Acoustic Consultants or Australian Acoustical Society or peer reviewed by an accredited consultant.
Adaptable housing details	Required where development contains adaptable dwellings (e.g., multiple dwellings, residential flat buildings, or mixed commercial/residential development). The following information must be provided: • Checklist demonstrating compliance with Class A, B or C dwelling in accordance with AS 4299. • Pre and post adaptation drawings.
Basix certificate	Required for: • All development that contains all types of new residential dwelling/s, including alterations and additions to existing dwellings valued at $50,000 or more, and swimming pools and outdoor spas with a minimum 40,000L capacity. • Class 1b tourist accommodation buildings. • Class 4 caretaker's residence within a commercial building. Relocated dwellings and manufactured homes do not require a BASIX certificate. The following information is to be provided in accordance with Clause 75 of the Environmental Planning and Assessment Regulation 2021: • BASIX Certificate. • All BASIX commitments to be identified on the plans. • Where applicable, ABSA Certification and a set of stamped plans. The BASIX Certificate must be generated on the Department of Planning and Environment BASIX website: https://www.planningportal.nsw.gov.au/development-and-assessment/basix, issued no earlier than 3 months before the date on which the application is lodged.

SUBMISSION REQUIREMENT	REQUIRED INFORMATION
Biodiversity assessment	Any clearing of vegetation associated with the proposal will need to be assessed as part of the DA. Assessment will be needed under either the Council's DCP (Controls for Biodiversity and Habitat Protection) where applicable or the Biodiversity Conservation Act 2016. The objective of both Council's DCP and the Biodiversity Conservation Act 2016 is to avoid or minimise clearing. Biodiversity Conservation Act 2016 Clearing that exceeds the area clearing thresholds of the Biodiversity Offset Scheme (BOS) will require assessment under the latter legislation and preparation of a Biodiversity DA Report (BDAR) by an accredited assessor and will require the matter to be considered under the Biodiversity Offsets Scheme and apply the Biodiversity Assessment Method (the BAM) to assess the impacts of a proposal. The area threshold varies depending on the minimum lot size (shown in the Lot Size Maps made under the relevant Local Environmental Plan (LEP)), or actual lot size (where there is no minimum lot size provided for the relevant land under the LEP). The area threshold applies to all proposed native vegetation clearing associated with a proposal, regardless of whether this clearing is across multiple lots and includes, asset protection zones, wastewater application areas, dwelling site, new accesses and services to the dwelling site etc. In the case of a subdivision, the proposed clearing must include all future clearing likely to be required for the intended use of the land after it is subdivided including new boundary lines. More details can be found at: https://www.environment.nsw.gov.au/biodiversity/offsetsscheme.htm Areas that impact mapped areas under the Biodiversity Values Map also trigger entry to the Biodiversity Offset Scheme even if the offset threshold above is not triggered, see https://www.lmbc.nsw.gov.au/Maps/index.html?viewer=BOSETMap The Biodiversity Values Map and Threshold Tool is used to produce a report that states whether a development proposal occurs on land on the BV Map and if the Biodiversity Offsets Scheme is triggered and can be accessed at https://www.lmbc.nsw.gov.au/Maps/index.html?viewer=BOSETMap **OR** Council's DCP Preparation of a Baseline Ecological Assessment to address Council's DCP controls. The proposal may trigger more detailed Biodiversity assessments, including a Flora and Fauna Assessment, Supplementary Threatened Fauna Assessment, Habitat Restoration Plan, Threatened Species Management Plan, and Biodiversity Offset Management Plan. Note, some exemptions apply to the preparation of a Baseline Ecological Assessment – see DCP controls. **OR** 5-part test At a minimum any clearing that is not required to be considered under the above assessments will necessitate assessment by a suitably qualified/experienced person sufficient for Council staff to properly consider the 5-part test contained at section 7.3 of the Biodiversity Conservation Act 2016. https://www.legislation.nsw.gov.au/#/view/act/2016/63/part7/div1/sec7.3 Please contact Council's Duty Planner if you are unsure of the type of Biodiversity Assessment required.
Bushfire report	A Bushfire report is required where land is identified as bushfire prone on Council's Bushfire Prone Land map or is subject to grassland hazard (Note: Council's current mapping for bushfire prone land does not include land identified as predominately grasslands which is now identified as a vegetation hazard under Planning for Bushfire Protection 2019). There are two types of bushfire assessment: • For single dwellings - A single dwelling application kit (available from the NSW RFS website www.rfs.nsw.gov.au/) can be used for residential infill development (dwellings and alterations/additions). For further details contact a Council officer or go to Clarence online mapping at www.clarence.nsw.gov.au • For subdivisions or developments identified as Special Fire Protection Purposes under s100B of the Rural Fires Act 1997 (including tourist accommodation, schools, childcare centres, hospital, seniors housing, group homes, etc), on bushfire prone land - a suitably qualified person must prepare the bushfire assessment report in accordance with NSW RFS Planning for Bushfire Protection 2019.

SUBMISSION REQUIREMENT	REQUIRED INFORMATION
Contamination report	If potentially contaminating activities have occurred on-site, a preliminary site investigation (PSI) must be prepared for the proposed development site. The investigation should include a detailed site history of the subject land including historical aerial photography and may be supported by statutory declarations from neighbours and previous owners and a search of Council's records (GIPA). The results of the preliminary site investigation may warrant further sampling and/or a Detailed Site Investigation (DSI) and Remedial Action Plan (RAP). Refer to *Managing Land Contamination – Planning Guidelines SEPP55- Remediation of Land* document for more information.
Cost estimate report	Provide the total value of the proposed development including any demolition, construction or fit-out costs including GST. **NOTE:** The value of the development or contract price is subject to a check by Council before final acceptance. Value of development between $1 million and $3 million should be confirmed by a suitably qualified person (e.g., a licensed builder, a registered architect, a qualified and accredited building designer, or similar). If the development is valued over $3,000,000, a detailed cost report prepared by the registered quantity surveyor needs to accompany the application. Swimming pools - the estimate may be from the quote by the swimming pool company installing the pool.
Crime & Safety Report	A report is required to ensure the proposal has been designed following consideration of the Crime Prevention through Environmental Design (CPTED) strategies relating to surveillance, access control, territorial reinforcement and space management. Further information can be found on the NSW Police website. CPTED refers to the principles specified under the Crime Prevention and the Assessment of Development Applications published by Department of Urban Affairs and Planning Guidelines for consideration under section 4.15 of the Environmental Planning and Assessment Act 1979 as amended. Under this section, all councils are required to consider and implement CPTED principles when assessing Development Applications. If a development application presents a crime risk, the guidelines can be used to justify modification of the development to minimise crime risk, or, refusal of the development on the grounds that crime risk cannot be appropriately minimised.
Cut/fill and retaining walls	Required where application proposes cut/fill and/or retaining walls. Plan to address the following: • Location of retaining walls to be shown on the site plan. • Height of retaining wall/filling to showing existing and proposed levels to AHD, including levels of the area surrounding the affected land. • Details of material to be utilised for construction of retaining wall. • Elevation of retaining wall/cross-section of batters.
Development Control Plan Variation / Local Environmental Plan Standard Variation	If your development does not comply with a LEP standard or a DCP control you need to seek a formal written request to vary the standard / control and provide adequate justification for the variation. A variation to an LEP standard is called a Clause 4.6 variation and must be made in writing addressing the requirements of that clause. Clause 4.6 allows flexibility in the application of development standards where this will achieve a positive planning outcome. A variation greater than 10% will require a report to Council for determination of the application and may require concurrence from the Department of Planning. Complex variations should be prepared by a town planning consultant. Council standard forms can be used for LEP and DCP variations. Note – additional application fees may apply for consideration of an LEP and DCP variation.

SUBMISSION REQUIREMENT	REQUIRED INFORMATION
Demolition plan and statement	Demolition plan to contain the following details: • The location of the structure to be demolished, shown via a dotted line. • Elevations indicating the height of the structure above ground level and the distance from the structure to the boundary, or alternatively, a series of photographs indicating this information. • A description of the type of building, e.g., house, shops. • A description of the methods of demolition proposed to be used, and the number of types of major items of equipment to be used in demolition. • A description of the methods proposed for handling and disposing of demolished materials and any hazardous materials. • A description of the proposed sequence of carrying out the demolition works, and an estimate of the time, in days, that it is likely to take to complete all or each of the stages of the work. • Details of the proposed hoardings, fencing, overhead protection and scaffolding.
Elevation plan	Showing all elevations boundary to boundary including location of doors, windows, external finishes/materials any earthworks proposed, ground levels, finished floor levels and ridge levels, and overall height of the building, plans are to be drawn to scale.
Fire safety measures	Required to enable Council to consider Clauses 62 & 64 of the Environmental Planning and Assessment Regulation 2001. Required for applications involving: • Change of building use, and/or • Alterations to an existing building. If the proposal involves a change of use of a building: • A list of *Category 1 fire safety provisions* that currently apply to the existing building. • A list of *Category 1 fire safety provisions* that are to apply to the building following its change of use. If the proposal involves additions or alterations to an existing building: • A scaled floor plan of the whole of the building showing existing and proposed fire safety measures.
Flood impact assessment Report	A report may be required to be prepared by a suitably qualified person. If the development site is affected by flooding or is likely to be affected by flooding/localised drainage, the applicant should consult with Council staff to determine the information required to be submitted.
Floor plan	Include room names, direction in which doors swing, location and size of windows and doors, areas and dimensions, position of fixtures in bathrooms and kitchens, location of accessible WC, means of providing disabled access. Additions are to be highlighted or clearly delineated. * Where the DA includes food preparation or personal appearance services (e.g., beauty salon/hairdresser) detailed plans and elevations are required to include the finishes of floors, walls, ceilings, benches, shelves, elevations of fixtures and fittings and location of sinks and hand wash basins, plans are to be drawn to scale.

SUBMISSION REQUIREMENT	REQUIRED INFORMATION
Heritage assessment	Heritage reports and supporting documentation are required to be provided with a Development Application in relation to heritage items and properties in a Heritage Conservation Area under Clause 5.10 of *Clarence Valley Council Local Environmental Plan 2011*, as set out in below: 1. For work in relation to an item listed on the State Heritage Register under the Heritage Act 1977, a Statement of Heritage Impact (SOHI) and Heritage Conservation Management Plan prepared in accordance with the requirements of Heritage NSW. 2. For works in relation to a **Heritage Item** of local significance, or **a property within a Heritage Conservation Area** listed on Schedule 5 of *Clarence Valley Council Local Environmental Plan 2011*, a Heritage Impact Statement (SOHI) prepared in accordance with the guidelines: *Statements of Heritage Impact is available on this link.* *https://www.environment.nsw.gov.au/research-and-publications/publications-search/statements-of-heritage-impact* Is required in relation to: • any demolition, relocation or subdivision of a structure building or land that is a listed Heritage Item, • Development under the conservation incentives clause 5.10(10) • Significant façade works, two storey additions, or additions greater than 100m^2 to a heritage item or building with a Heritage Conservation Area The heritage report is to be prepared by a professional heritage consultant with relevant experience and skills to the project. A list of heritage consultants is available on this link. https://www.environment.nsw.gov.au/topics/heritage/manage-heritage-items/heritage-consultants-directory A Heritage Conservation Management Strategy may also be required in some circumstances. 3. A detailed Statement of Environmental Effects addressing the heritage provisions of the applicable Clarence Valley Development Control Plan 2011. A detailed Statement of Environmental Effects will be accepted in relation to proposed development of a non listed property in a Heritage Conservation Area where the proposed works are not included in point 2 above.
Landscape plan	Prepared by a person competent in the field and is to indicate the mature height, location, quantity and species of all existing vegetation and trees (including street trees/public trees and trees close to common boundaries), proposed plantings and permeable and non-permeable surfaces detailing areas for turf, paving, rocks, and concrete etc. The plan should also demonstrate that the landscaped area required for the development is achieved, plans are to be drawn to scale including a legend.
Liquid trade waste	If your business generates liquid trade waste which is discharged to the local sewerage system, you must have Council approval and, in most cases, provide and maintain pre-treatment devices to ensure that your discharge meets acceptable standards. Refer to the fact sheet on liquid trade waste at www.clarence.nsw.gov.au. Once approved for trade waste disposal, annual Liquid Trade Waste management fees and usage charges apply.
Notification plans	To include the site plan, (internal floor plans deleted) and elevations**.** Some types of development will require Public Notification. Public Notification means that neighbours and other interested parties must be advised that an application for development has been lodged and that they can comment on the application. All plans are to be drawn to scale including a legend.
On-site wastewater management system	Required where a lot does not have access to the reticulated sewer system. An on-site wastewater management system is required to treat and dispose of wastewater effluent associated with the development. Wastewater disposal must comply with the Clarence Valley Council's On-site Wastewater Management Strategy 2019. For Dwellings For the purposes of Development Application assessment, Council must be satisfied that the lot can accommodate an on-site wastewater management system based on the circumstances of the proposed development and constraints of the site. To demonstrate this (at DA stage) an applicant must submit a an onsite Waste Water application concurrently with the DA.

SUBMISSION REQUIREMENT	REQUIRED INFORMATION
	When assessing Section 68 applications for non-domestic systems, Council will consider these applications on a site-specific basis and may require a wastewater management report to be prepared by a suitably qualified and experienced designer. Reference should be made to Council's website – Septic: Application to Install, Construct or Alter, and Approval to Operate form and checklist of documentation to accompany the Section 68 application. <u>For Subdivisions and other development</u> For subdivision of land not serviced by reticulated sewer that creates lots less than 1ha in area, and for some commercial, industrial or multi dwelling developments on land not serviced by reticulated sewer, a wastewater management report is to be prepared by a suitably qualified person.
Owners Consent	Written landowners consent will be required for all development applications where the applicant is not the owner. See the owners consent form on Council's website for more information.
Section plan	Internal cross-sectional structure of the proposed building indicating construction materials and ceiling heights *Required for a minor addition; Internal cross-sectional structure of the proposal, footing details, energy efficient measures, floor, and ceiling heights. All plans are to be drawn to scale including a legend.
Shadow diagrams	A Shadow Diagram is a plan showing where shadows will fall at specific times of the day. Shadow diagrams allow Council to assess the potential overshadowing impact of a proposal. If required under the Development Control Plan - Shadow diagrams are to show shadow impact on the land and adjoining land between 10am and 2pm during midwinter.
State environmental planning policy (Sepp) 65 documentation	Required for residential flat development to which SEPP 65 – 'Design Quality of Residential Flat Development', applies. The following shall be submitted: • Design verification statement from a qualified designer, addressing the requirements of SEPP 65. Additional details to be contained within the Statement of Environmental Effects, as required in accordance with SEPP 65. • A compliance Table demonstrating assessment against the Apartment Design Guide Additional details to be contained within the Statement of Environmental Effects, as required in accordance with SEPP 65.
Site analysis	Site dimensions and site area; north point; topography and contours; location of existing vegetation; location of services and easements; location of other buildings and structures; any heritage features (if applicable); vehicle access; location of fences; drainage and effluent disposal (for rural areas); location, height and use of neighbouring buildings; street frontage features such as street trees, poles, etc.
Signage plan	Required where signage is proposed. The following shall be submitted: • Details of the proposed structure and construction materials. • Size, colours, type, and overall design of the sign, including overall height dimension. • Proposed sign wording and method of any illumination. • Location/s of proposed signs to be shown on a site plan.
Site plan	Showing the entire allotment with boundary dimensions, site area, the location and uses of the existing and proposed buildings/structures. Shows any structures to be demolished, any rights of carriageway or easement, public road/s adjoining the site, the north point, existing vegetation and trees including vegetation to be removed, setbacks to all boundaries, existing or proposed driveway, proposed building footprint, effluent disposal area and location of on-site wastewater treatment system if in unsewered area, RL's and contours (Australian Height Datum (AHD) required for Flood liable land), Basix commitments, extent of any earthworks.

SUBMISSION REQUIREMENT	REQUIRED INFORMATION
Statement of Environmental Effects (SEE)	A Statement of Environmental Effects is required for all types of development. This is a written statement that addresses the matters for consideration contained within Section 4.15 of the Environmental Planning and Assessment Act 1979. The Statement of Environmental Effects must indicate the following matters: • A description of the site • A detailed description of the proposed development • Details of compliance with relevant environmental planning instruments (SEPPs and LEP) • Details of compliance with Council's Development Control Plan • Justification for variations to the LEP or DCP • The environmental impacts of the development, and steps to be taken to protect the environment or to lessen the expected harm to the environment. • The suitability of the site for the development • **Note:** A pro forma Statement of Environmental Effects may only be submitted where works are minor and adverse environmental impacts are unlikely. This includes development such as signage, single dwellings, change of use applications, strata subdivision.
Statement erosion and sediment control	Development Applications involving major earthworks will require a detailed Erosion and Sediment Control Plan in accordance with Council's Development Control Plan.
Stormwater Management	*Proposed stormwater design to indicate method of drainage proposed. (dwelling/minor)* The stormwater plan should include: • Location of any drainage easements • Proposed drainage lines, size, depth, fall, location, and material type • Existing stormwater drainage location including downpipes, connection, and discharge points • Details of discharging/managing stormwater where property slopes away from street (Include site contours/spot levels). • If Sustainable Water Controls apply under the DCP, a Stormwater Management Plan, prepared by a suitably qualified engineer, shall be provided. The Stormwater Management Plan shall consider and demonstrate the following: ◦ Stormwater quality is to be achieved through the adoption of Water Sensitive Urban Design principles and/or Stormwater Quality Improvement Devices ◦ Stormwater runoff volumes and frequency reduced or maintained to the pre-development through application of Harvesting, Retention, Infiltration and Detention as appropriate
Subdivision plan	A plan to address the following: • Clearly nominate existing and proposed boundaries. • Detail accurate areas of proposed lots. • Identify roads and waterways • Show all existing structures and improvements (access etc) on site. • Show all existing vegetation on site. • Show contours where required • Show north point • Show location of any existing or proposed easements/restrictions/services. For lots proposed to be created that are less than 560m2, an additional plan is to be submitted showing a concept design for a dwelling. The plan is to demonstrate that it is possible to fit a rectangle suitable for a building measuring 10 metres by 15 metres behind the building line that complies with Council's DCP controls for setbacks, private open space, and landscaped area.
Traffic Report	A traffic report prepared in accordance with the requirements of the Clarence Valley Council Development Control Plan 2011.
Waste management plan	Prepared in accordance with Council's Waste Not Development Control Policy and Development Control Plan for developments with a footprint exceeding 50m^2.